

Kalwa Khan v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 11 May 2012 · Writ - C No. 20172 of 2012 · **Writ dismissed; relegated to CGRF under Clause 7.10.**

HEADNOTE

A writ challenging an electricity bill as arbitrary, after the District Consumer Redressal Forum had already rejected the grievance, was dismissed because the consumer had an adequate alternative remedy before the Consumer Grievance Redressal Forum constituted under Clause 7.10 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Kalwa Khan filed a writ in the Allahabad High Court challenging a demand raised in an electricity bill dated 17 March 2012 as arbitrary. He had already approached the District Consumer Redressal Forum, which rejected his grievance. On 25 April 2012 the Division Bench directed counsel for the respondents to obtain instructions on the period of arrears covered by that bill, and after a short adjournment heard the petition on 11 May 2012.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-alternative-remedy-billing

HOLDING

A consumer challenging an electricity-bill demand as arbitrary has an adequate alternative remedy before the Consumer Grievance Redressal Forum constituted under Clause 7.10 of the Electricity Supply Code, 2005, even after the District Consumer Redressal Forum has rejected the grievance; the writ is dismissed on that ground. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Billing challenge after District Consumer Forum rejection still relegated to CGRF under clause 7.10. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND IN THE BILL DATED 17.03.2012 WAS ARBITRARY

Left open; writ dismissed on alternative remedy without examining the bill. ¶ 1